

HOUSE No. 152

The Commonwealth of Massachusetts

PRESENTED BY:

Carlos González

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to study the impacts of cannabis.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carlos González</i>	<i>10th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 152

By Representative González of Springfield, a petition (accompanied by bill, House, No. 152) of Carlos González for an investigation by a special commission relative to cannabis consumption. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to study the impacts of cannabis.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) There shall be a special commission to study cannabis consumption that would
2 constitute public intoxication or operating under the influence in a manner equivalent to the
3 standards adopted for the consumption of alcoholic beverages. The commission shall consist of
4 the following members: the chair of the cannabis control commission or their designee acting as
5 chairperson; the commissioner of the department of public health or their designee; the secretary
6 of the executive office of public safety and security or their designee; the commissioner of the
7 department of mental health or their designee; the chair of the Massachusetts peace officers
8 standards and training commission or their designee; the colonel of the Massachusetts State
9 Police or their designee; 1 member appointed by the governor; 1 member appointed by the
10 speaker of the house of representatives; 1 member appointed by the senate president; 1 member
11 appointed by the Massachusetts Association of District Attorneys; 1 member appointed by the
12 Massachusetts Bar Association; 1 member appointed by the Massachusetts Medical Association;
13 1 member appointed by the Massachusetts Pediatricians Association; 1 member appointed by the

dean of the Harvard School of Public Health; 1 member appointed by the dean of the University of Massachusetts Medical School; and a representative the Cannabis growers of Massachusetts. The commission to meet according to the schedule of the chair.

(b) The commission shall study the growth of the usage of cannabis since the legalization of consumption, including, but not limited to, (i) the strength of current products and frequency of use by the public; (ii) the multiple forms of consumption available to the public of both legal and illegally purchased products; (iii) whether cannabis is being treated with synthetic or other substances not historically used in the cultivation of the marijuana plant; (iv) and the effects these substances are having on the citizens of the commonwealth and their health and safety.

(c) The commission shall make a recommendation of the level of intoxication to be legally allowed in the commonwealth, a system of measurement of that level and the level for the operation under the influence for motor vehicles ,including, but not limited to, vehicles operated by a fuel powered motor whether used on the public roadways or private ways, for construction purposes, industrial purposes, farm purposes, business or recreational purposes, operated on land, water or in the air; operated by remote control or operated by presence inside the vehicle. The commission shall devise a method for the determination of the level necessary to create an unsafe level of consumption for the operation under the influence. The commission shall also study the level of consumption necessary to create an unsafe workplace.If there is not a current system for measurement the Commission shall make a recommendation concerning whether this is a field of industry to be encouraged in the commonwealth and recommend incentives for business development in the commonwealth if appropriate. If the Commission is unable to find a method for measuring intoxication, the Commission shall make specific recommendations for a field sobriety test to be enacted by the legislature.

37 (d) The commission shall be formed within 90 days of the passage of this act or not later
38 than January 1, 2026 and shall file a report of its findings, including any legislative or regulatory
39 recommendations, with the clerks of the senate and the house of representatives , the speaker of
40 the house of representatives, the president of the senate, the joint committee on public safety and
41 homeland security, the joint committee on cannabis policy, the joint committee on public health
42 and the joint committee on mental health and substance use not later than December 31, 2026.